

(46)

### Tentative Ruling

Re: ***In re: Abby Long***  
Superior Court Case No. 26CU02449

Hearing Date: September 3, 2026 (Dept. 501)

Motion: Petition to Approve Compromise of Disputed Claim of Minor

### Tentative Ruling:

To grant the petition. The court intends to sign the proposed orders. No appearances are necessary.

Pursuant to Superior Court of Fresno County, Local Rules, Rule 2.8.4, the court sets a **Status Conference on Thursday, November 19, 2026, at 3:30 p.m. in Department 501** for confirmation of deposit of the minors' funds into a blocked account. If petitioner files the Acknowledgments of Receipt of Order and Funds for Deposit in Blocked Account (MC-356) at least ten (10) court days before the hearing, the status conference will come off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

## Tentative Ruling

Issued By: KCK on 09/01/26  
(Judge's initials) (Date)

(48)

**Tentative Ruling**

Re: **Neyli Ramirez v. Doe Obstetrician**  
Superior Court Case No. 25CECG05860

Hearing Date: September 3, 2026 (Dept. 501)

Motion: By Plaintiffs for Trial Setting Preference

**Tentative Ruling:**

To grant. (Code Civ. Proc., § 36, subd. (b).) **Hearing remains on calendar. All parties are directed to appear and be prepared to select a trial date.**

**Explanation:**

Plaintiff Dylan Ramirez ("Plaintiff"), a minor, seeks preferential setting of trial under Code of Civil Procedure section 36, subdivision (b). Code of Civil Procedure section 36, subdivision (b) provides, in pertinent part:

A civil action to recover damages for wrongful death or personal injury *shall* be entitled to preference upon the motion of any party to the action who is under 14 years of age unless the court finds that the party does not have a substantial interest in the case as a whole.

(Code Civ. Proc., § 36, subd. (b), emphasis added.)

Where a motion under this subdivision is granted and the action is based upon a health provider's alleged professional negligence, the party "*shall* receive a trial date not sooner than six months and not later than nine months from the date that the motion is granted." (Code Civ. Proc., § 36, subd. (g), emphasis added.)

Here, Plaintiffs submit evidence demonstrating that Dylan Ramirez is under 14 years of age. (Leib Decl., ¶ 4, Ex. A.) Plaintiffs further submit that Dylan Ramirez has a substantial interest in the case as a whole because it is alleged Dylan Ramirez's personal injuries resulted from the negligent acts of the named defendants. (Leib Decl., ¶¶ 3-6.) Also, it is alleged that Defendants are health providers. Defendants do not dispute these facts. Accordingly, preference is mandatory and trial must be set pursuant to section 36, subdivision (g). (Code Civ. Proc. § 36, subd. (b) & (g).)

Defendants The Regents of the University of California, Casey Sautter, M.D., Amy Ransohoff, M.D., and Priya Meena Vasudeva, D.O. (collectively "Defendants") oppose the motion primarily on the grounds that the motion is premature, and request a 90-day continuance. Defendants contend that the facts of the case are complex and more than nine months are needed to conduct sufficient discovery. The legislature has declared that trial setting preference is mandatory once a plaintiff establishes that he or

